



16663 US-41,
Spring Hill, FL 34610

 **727 755 3786**



STATE OF FLORIDA

CASH CONSTRUCTION PURCHASE AGREEMENT

AGREEMENT KEY TERMS AND CONDITIONS.

ESTIMATED DESCRIPTION OF THE PROJECT AND ESTIMATED DESCRIPTION OF THE SIGNIFICANT MATERIALS TO BE USED AND HARDWARE TO BE INSTALLED. Products, hardware, and the final scope were determined by the Site Visit and provided in an amendment exhibit "ESTIMATE # 365" to this Agreement.

ESTIMATED CONTRACT PRICE. The Contract Price for the Project is: **\$115,500.00**. The Contract Price is subject to change orders agreed to in writing by both parties if the customer requires any upgrade.

INSTALLATION TIMELINE. The Company will commence work within a reasonable time after execution of the amendment to this Agreement and will use commercially reasonable efforts to complete the project within a reasonable time. Timeline estimates may be adjusted as provided in this Agreement or any subsequent amendments, including delays due to permitting, inspections, material availability, weather, or other circumstances beyond the Company's control.

CHANGE ORDER. The Contract Price includes standard mid-grade American-standard fixtures, appliances, and finishes for the home. If the Homeowner requests any change, upgrade for electrical, plumbing, or substitution of fixtures, appliances, or finishes from those originally included, the Homeowner shall pay the difference in cost between the standard item and the upgraded item. Such changes must be approved in writing by text or email before ordering.

PROJECT / SCOPE SUMMARY

Property Owner(s) Name: Awilda Velazquez
Property Installation Address: SW 24th pl, Ocala, FL 34447
Customer Phone Number: 4077157539
Customer Email Address: felicit23@yahoo.com
PROJECT DESCRIPTION / WORK TO BE PERFORMED: Scope of Work – Updated Contract Description This project includes the complete construction of the Awilda Velazquez residence, performed to the Florida Building Code 2023 using professional mid-grade American Standard materials for new construction. Work includes a full electrical system installation with a new service entrance, a fully labeled main panel, complete wiring, devices, grounding, bonding, surge protection, and a final electrical inspection. Plumbing work includes all final connections for the kitchen, bathrooms, laundry, drains, valves, and fixtures, including pressure testing and preparation for the final plumbing inspection. Mechanical work includes the installation of a complete 3-ton HVAC system with air handler, condenser, line set, drain line, thermostat, electrical disconnect, vacuum, charge, and full startup. Exterior work includes a complete 7/8 inch stucco system, gray dimensional asphalt shingles, soffit and fascia installation, American Standard impact windows, and vinyl exterior doors. Landscaping includes grading, cleanup, preparation, sod installation, and front yard landscaping. Concrete work includes a full concrete driveway with an added walkway to the main entry. Also included is a screened lanai, a new garage door, and site cleaning throughout construction.

Interior work includes drywall installation, taping, mudding, texturing, insulation, interior paint, flooring installation, baseboards, tile bathrooms with shower tile, cabinetry made from half-inch birch wood, medium-grade, and gray granite fabrication and installation for all countertop areas. Kitchen and bathroom cabinetry and finishes will be completed to provide a move-in-ready home.

Additional work includes septic system installation, new well system, extra dirt and grading as needed, and all incidentals required to complete construction. One-time engineer's letter, signed and sealed, will be provided if it's necessary for the project. All work is performed to code and delivered with quality workmanship to ensure a long-lasting, dependable, and high-value home.

PAYMENT AND PRICE DETAILS	
Total Project Price:	USD \$ 115,500.00
Payment Method:	Cashier's Check
Construction Payment Schedule:	
Initial Deposit (5 trades):	USD \$ 47,596.7 (Is 41.21% of the total value of the contract.)
Progress / Completion Schedule Payment (52.86%):	USD \$ 55153.30 (Is 47.75% of the total due upon trade inspections or work completed that do not require inspection.)
Final Payment (10%):	USD \$ 12,750.00 (Is 11.4% of the total contract amount due after the Final inspection)
Remaining Balance (if any): USD \$ 0.00 amount remaining.	

LOAN OR FINANCING TERMS (if applicable): {contracts_terms}. Any APR or loan payment details will be provided in the separate financing documents. The Client acknowledges responsibility for reviewing and accepting any financing documents provided by the financier before funding.

NOTICE: Client is advised that failure to make payments when due may result in the Company exercising remedies available under this Agreement, including placing a mechanic's lien against the property as permitted by applicable law.

NOTICE REGARDING FLORIDA CONSTRUCTION LIEN LAW

ACCORDING TO FLORIDA'S CONSTRUCTION LIEN LAW (SECTIONS 713.001-713.37, FLORIDA STATUTES), THOSE WHO WORK ON YOUR PROPERTY OR PROVIDE MATERIALS AND SERVICES AND ARE NOT PAID IN FULL HAVE A RIGHT TO ENFORCE THEIR CLAIM FOR PAYMENT AGAINST YOUR PROPERTY. THIS CLAIM IS KNOWN AS A CONSTRUCTION LIEN. IF YOUR CONTRACTOR OR A SUBCONTRACTOR FAILS TO PAY SUBCONTRACTORS OR MATERIAL SUPPLIERS, THOSE PARTIES MAY LOOK TO YOUR PROPERTY FOR PAYMENT. IF A LIEN IS FILED, YOUR PROPERTY COULD BE SUBJECT TO LEGAL ACTION.

- (2)(a) If the contract is written, the notice must be in the contract document. If the agreement is oral or implied, the notice must be provided in a document referencing the contract.
- (b) The failure to provide such written notice does not bar the enforcement of a lien against a person who has not been adversely affected.
- (c) This section does not affect the lien and bond rights of lienors who are not in privity with the owner and does not apply when the owner is a contractor licensed under chapter 489 or a developer offering parcels for sale or lease in the ordinary course of business.

By signing below, the Client acknowledges that they have read, understood, and agree to the terms and conditions of this Agreement, including the payment schedule and lien notice. The Client further acknowledges that any modifications to this Agreement must be made in writing and signed by both parties.

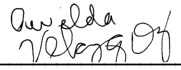


Seating Constructors USA / DBA Smart Choice Contractors USA

General Contractor Clyde Phil Venderhider

Company Signature:

Date: 2025-12-01

Customer Signature:  _____

Date: 2025-12-01

Printed Name: Awilda Velazquez

PAYMENT SCHEDULE BY TRADE (LABOR, MATERIALS & DISCOUNT)

OWNER AGREES TO PAY CONTRACTOR THE FOLLOWING AMOUNTS UPON COMPLETION OF EACH TRADE OR INSPECTION MILESTONE. ALL ORIGINAL INITIALS AMOUNTS INCLUDE A (5) TRADES PAY TO THE GENERAL CONTRACTOR TO START THE PROJECT. AFTER THAT, OTHER TRADES WILL BE PAID AFTER INSPECTION APPROVAL. INSPECTION MILESTONES ARE COORDINATED WITH MARION COUNTY, FLORIDA, BUILDING DEPARTMENT REQUIREMENTS. A UNIFORM DISCOUNT HAS BEEN APPLIED TO REACH THE FINAL CONTRACT PRICE.

ESTIMATED TOTAL WITH LABOR AND MATERIALS (BEFORE DISCOUNT): \$165,398.65

FINAL CONTRACT PRICE AFTER DISCOUNT: \$127,500.00 AND TOTAL AMUNT OF THE PROJECT UNTIL COMPLETION TURN KEY

#	TRADE / ITEM	ORIGINAL PRICE (USD)	PRICE DISCOUNTED (USD)	INITIALS AW	PAYMENT MILESTONE / INSPECTION TRIGGER
1	WATER WELL	\$9,180.00	\$7,077.45	AW	PAYABLE UPON COMPLETION OF WATER WELL INSTALLATION AND REQUIRED INSPECTION APPROVAL.
2	SEPTIC SYSTEM	\$11,475.00	\$8,834.31	AW	PAYABLE UPON SEPTIC INSTALLATION AND FINAL SEPTIC INSPECTION APPROVAL.
3	GARAGE DOOR & OPENER	\$2,025.00	\$1,559.37	AW	PAYABLE UPON INSTALLATION AND FUNCTIONAL VERIFICATION.
4	PLUMBING	\$14,175.00	\$10,922.64	AW	PAYABLE 50% AT ROUGH INSPECTION AND 50% AT FINAL INSPECTION.
5	ELECTRICAL	\$12,150.00	\$9,352.46	AW	PAYABLE 50% AT ROUGH INSPECTION AND 50% AT FINAL INSPECTION.
6	HVAC 3.5 TONS, DUCTWORK AND EXHAUST FANS & INSULATION	\$20,673.65	\$15,914.80	AW	PAYABLE 50% AT ROUGH HVAC AND 50% AT FINAL SYSTEM START-UP / INSPECTION.
7	NEW ROOF DRY-IN AND FINAL SHINGLES	\$11,880.00	\$9,145.28	AW	PAYABLE AFTER FINAL ROOF INSPECTION.
8	STUCCO	\$10,800.00	\$8,328.35	AW	PAYABLE AFTER STUCCO INSPECTION APPROVAL.
9	WOOD CABINETS	\$8,926.00	\$6,873.93	AW	AFTER CABINET INSTALLATION.
10	PAINTING	\$9,855.00	\$0	AW	FINAL ACCEPTANCE

#	TRADE / ITEM	ORIGINAL PRICE (USD)	PRICE DISCOUNTED (USD)	INITIALS AW	PAYMENT MILESTONE / INSPECTION TRIGGER
					AND TOUCH-UPS.
11	FLOORING LVP	\$4,725.00	\$0	AW	AFTER FLOORING INSTALLATION.
12	TRIM	\$560.00	\$431.37	AW	AFTER TRIM INSTALLATION.
13	2 BATHROOM TILE	\$4,800.00	\$3,697.49	AW	AFTER TILE COMPLETION.
14	ALUMINUM LANAI	\$1,510.65	\$1,163.24	AW	AFTER INSPECTION APPROVAL.
15	WINDOWS AND DOORS	\$12,800.00	\$9,848.00	AW	FINAL DOOR/WINDOW INSPECTION APPROVAL.
16	DRYWALL FINISH AND TEXTURE	\$14,175.00	\$10,922.64	AW	AFTER FINAL DRYWALL COMPLETION.
17	APPLIANCES	\$2,685.00	\$2,068.93	AW	AFTER DELIVERY, INSTALLATION, AND VERIFICATION.
18	ATTIC ACCESS	\$675.00	\$519.36	AW	AFTER INSTALLATION.
19	DRIVEWAY	\$4,995.00	\$3,848.50	AW	AFTER FINAL INSPECTION.
20	LANDSCAPE	\$3,780.00	\$2,912.77	AW	AFTER LANDSCAPE FINALIZATION.
21	SOFFIT & FASCIA	\$1,722.00	\$1,326.19	AW	AFTER INSTALLATION.
22	INTERIOR WINDOWS / DOOR FRAMING	\$2,890.00	\$2,226.20	AW	AFTER FINAL INSTALLATION COMPLETION.
23	JOB CLEANUP / TRASH REMOVAL	\$890.00	\$686.56	AW	UPON PROJECT COMPLETION.
24	PROJECT TOTALS	\$165,398.65	\$115,500.00	AW	FINAL PROJECT COST AFTER DISCOUNT.

NOTICE OF COMMENCEMENT

Permit No.: _____

Tax Folio No.: _____

State of: _____

County of: _____

The undersigned hereby gives notice that improvement will be made to certain real property. In accordance with Chapter 713, Florida Statutes, the following information is provided in the Notice of Commencement.

1. Description of property (legal description and street address if available):

2. General description of improvement:

3. Owner Information:

Name: _____
Address: _____
Phone: _____ Fax: _____
Interest in property: _____

Name and address of fee simple titleholder (if other than Owner) _____

4. Contractor:

Name: SMART CHOICE CONTRACTORS USA
Address: 1663 US HWAY 41 SPRING HILL FLORIDA 34610
Phone: (727) 755-3786 Fax: (727) 755-3786

5. Surety (if applicable, attach bond):

Name: _____
Address: _____
Amount of Bond: \$ _____ Phone: _____ Fax: _____

6. Lender:

Name: _____
Address: _____
Phone: _____ Fax: _____

7. Persons within the State of Florida designated by the Owner upon whom notices or other documents may be served as provided by Section 713.13(1)(a)7., Florida Statutes:

Name: _____
Address: _____
Phone: _____ Fax: _____

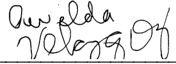
8. In addition to himself or herself, Owner designates the following person(s) to receive a copy of the Lienor's Notice as provided in Section 713.13(1)(b), Florida Statutes.:

Name: _____
Address: _____
Phone: _____ Fax: _____

9. Expiration date of notice of commencement (the expiration date is 1 year from the date of recording unless a different date is specified): _____

WARNING TO OWNER: ANY PAYMENTS MADE BY THE OWNER AFTER THE EXPIRATION OF THE NOTICE OF COMMENCEMENT ARE CONSIDERED IMPROPER PAYMENT UNDER CHAPTER 713, PART I, SECTION 713.13, FLORIDA STATUTES, AND CAN RESULT IN YOUR PAYING TWICE FOR IMPROVEMENTS TO YOUR PROPERTY. A NOTICE OF COMMENCEMENT MUST BY RECORDED AND POSTED ON THE JOB SITE BEFORE THE FIRST INSPECTION. IF YOU INTEND TO OBTAIN FINANCING, CONSULT WITH YOUR LENDER OR AN ATTORNEY BEFORE COMMENCING WORK OR RECORDING YOUR NOTICE OF COMMENCEMENT.

Printed Name: _____

Signature: 

(Owner or Owner's Authorized Officer/Director/Partner/Manager)

Owner's Name: _____

Owner's Address: _____

Verification Pursuant to Section 92.525, Florida Statutes:

Under penalties of perjury, I declare that I have read the foregoing and that the facts stated in it are true to the best of my knowledge and belief.

Signature of Natural Person Signing Above: _____

SALES DISCLAIMER

At **Smart Choice Contractors USA**, our top priority is delivering an exceptional customer experience in every construction project. We believe in transparency, trust, and clear communication throughout every phase of the work. This document ensures that all details, terms, and expectations have been explained, promoting a smooth and stress-free process. By reviewing and initialing each section, you acknowledge that we have provided complete information about your purchase, financial responsibilities, and rights as our valued customer. Our mission is not only to complete your project but to establish long-lasting relationships based on integrity, craftsmanship, and satisfaction.

Question	Customer Initials	Question	Customer Initials
The warranty terms, including coverage and limitations, were clearly explained to me.	{customer_initials}	The total project cost, payment schedule, and balance terms were reviewed and understood.	{customer_initials}
I was advised of my right to cancel this contract within three (3) business days after signing.	{customer_initials}	I understand that all changes or modifications to this agreement must be in writing and signed by both parties.	{customer_initials}
I acknowledge that non-payment may result in a lien being placed on my property in accordance with state law.	{customer_initials}	I understand that unpaid balances may be subject to collection fees or additional charges as permitted by law.	{customer_initials}
I was informed that the warranty covers labor, while materials are covered by manufacturer warranties when applicable.	{customer_initials}	I understand that Smart Choice Contractors USA is not responsible for damage caused by weather, accidents, or misuse after the completion of the work.	{customer_initials}
I was advised that construction timelines may vary depending on permits, inspections, and material availability.	{customer_initials}	I understand that Smart Choice Contractors USA is not responsible for delays beyond its control, including those caused by weather or third-party inspections.	{customer_initials}
I was encouraged to review all contract details and terms carefully before signing this agreement.	{customer_initials}	I agree that verbal agreements are not binding unless written into a contract.	{customer_initials}
I was informed that Smart Choice Contractors USA is licensed and insured, and is a DBA for Seating Constructors USA	{customer_initials}	I acknowledge that dissatisfaction with third-party services (e.g., permit offices or inspectors) does not void this contract.	{customer_initials}
I understand that my signature below represents my full acknowledgment and agreement to these terms.	{customer_initials}	I confirm that all my questions have been answered to my satisfaction before signing this document.	{customer_initials}

On behalf of **Smart Choice Contractors USA**, we sincerely appreciate your trust in choosing us for your construction needs. Our commitment is to deliver the highest quality workmanship and customer service. Should you have any questions or concerns during your project, please contact us immediately. Thank you for your business and for allowing us to serve you.

DEPARTMENT OF BUSINESS AND PROFESSIONAL REGULATION

FLORIDA HOMEOWNERS' CONSTRUCTION RECOVERY FUND

Construction Industry Licensing Board
2601 Blair Stone Road, Tallahassee, Florida 32399-1039
Telephone: (850) 921-6593 | Fax: (850) 921-5450

DEPARTMENT OF BUSINESS AND PROFESSIONAL REGULATION FLORIDA HOMEOWNERS' CONSTRUCTION RECOVERY FUND

More information is required. You can download the form here: [Claim Form](#).

What is this fund for?

This fund is designed to compensate Florida homeowners who have been affected by financial mismanagement or improper conduct by a licensed contractor. Our team has informed you of your right to this service and guided you through the steps to file your claim.

Claim Information

The **Florida Homeowners' Construction Recovery Fund** is governed by Florida Statute 489.140 and the Florida Administrative Code 61G4-21. Its purpose is to provide compensation to claimants who have obtained a final judgment or an arbitration award in their favor due to financial mismanagement, project abandonment, or false statements made by the contractor.

Legal Warning

Florida Statutes. 489.143(10): Any company, corporation, partnership, association, or individual who, acting alone, aids, abets, solicits, or conspires with another person to file or cause the filing of a false or fraudulent claim for payment of a loss under this law commits a third-degree felony, punishable under Florida Statutes s. 775.082 or s. 775.084 and with a fine of up to \$30,000, unless the fraud amount exceeds this value, in which case the fine shall not exceed twice the value of the fraud.

Note: Claims will not be processed until 45 days have passed from the date of the final order.

Client Initials: _____

By placing their initials, the client acknowledges that they have been notified about this fund and their rights to file a claim.

TEN (10) YEAR MATERIAL WARRANTY

ONE (1) YEAR LABOR WARRANTY

Smart Choice Contractors USA ("Contractor") and its successors and assigns, hereby warrants to **Awilda Velazquez** (hereinafter referred to as "Customer"), that the Work performed and materials supplied by the Contractor relating to the Contract **#23** dated **2025-12-01**, relating to ("Project"), shall be free of defects or failures for the period of time specified below.

1. WARRANTY COVERAGE

Contractor warrants that all Work performed, and materials supplied are new, merchantable, fit for the intended use, conform to the standards in the Contract, and are free from defects in workmanship and material for a period of **Ten (10) Years** commencing from the date of Final Completion. This Warranty includes coverage for consequential damages for every part of the Project, including personal property.

5. LEGAL RIGHTS

This Warranty provides the Customer specific legal rights in addition to those under Florida law.

6. SUCCESSORS AND ASSIGNS

Contractor binds itself, successors, and assigns to this Warranty.

2. WARRANTY LIMITATIONS

This Warranty is unconditional and all-encompassing, except it excludes: (a) misuse, neglect, or unauthorized alterations; (b) damage caused by trades or persons not affiliated with Contractor; (c) acts of God or natural disasters (including but not limited to hurricanes, floods, or earthquakes).

3. REMEDY

In the event of any defect, malfunction, or failure, Contractor shall remedy such defect without cost to Customer within **thirty (30) days** of notice. Remedy shall consist of repair or replacement. If repair is not commercially practicable, Customer may elect monetary compensation equal to repair or replacement costs.

EXECUTION

IN WITNESS WHEREOF, Contractor has executed this Warranty this ____ day of _____, 2025-12-03 01:02:40.

Smart Choice Contractors USA

By: _____
President

NOTARY ACKNOWLEDGMENT

STATE OF FLORIDA
COUNTY OF _____

The foregoing instrument was acknowledged before me this ____ day of _____, 2025-12-03 01:02:40, by _____, as PRESIDENT of Smart Choice Contractors USA, who is personally known to me or has presented identification, and who did not take an oath.

My Commission Expires: _____

NOTARY PUBLIC, State of Florida



Warranty Certificate

This warranty certificate is issued for the system installed by **Smart Choice Contractors USA**.

This warranty is valid provided the system is maintained and used according to the manufacturer's instructions.

Note: This warranty is transferable within one (1) year of the start date upon written notice to Smart Choice Contractors USA. Extended warranty options are available for an additional cost.

Client Name: Awilda Velazquez
Address: SW 24th pl, Ocala, FL, 34447
Contract #: 23
Warranty #: {contract_number}

Start Date: 2025-12-01

Expiration Date: 2026-04-15

Warranty Years for Equipment and Materials: 25 Years or as specified by the manufacturer

Warranty Years for Labor: 1 Year

Smart Choice Contractors USA guarantees that the work was performed under the highest quality standards and in full compliance with the Florida construction laws and applicable regulations.

This warranty certifies that the installation meets all Florida construction standards and manufacturer specifications. Any claim under this warranty must be submitted in writing within the valid warranty period.

Authorized Signature

Seating Constructors USA / DBA Smart Choice Contractors USA

General Contractor Clyde Phil Venderhider

Company Signature:

Date: 2025-12-01

TERMS & CONDITIONS

1. Acknowledgment of Parties and Conduct

For the purposes of these Terms and Conditions, "the Company" shall mean **Smart Choice Contractors USA, dba of Seating Constructor USA, a general contractor company license number cgc1505749, and "the Client" shall mean the individual who has executed this Agreement.** The Company expressly acknowledges and agrees to fully comply with all clauses set forth in these Terms and Conditions. The Company recognizes the rights and obligations of both the Client and the Company and commits to act at all times with honesty, responsibility, and integrity, consistently seeking to uphold the interests and benefits of both the Client and the Company in the performance of this Agreement.

2. Acceptance. All proposals are subject to final approval by the management of **Smart Choice Contractors USA.** Agree to provide the products and services outlined in this Proposal detail page, only with the condition that you agree to accept the terms and conditions of sale set forth in this Proposal.

3. Quotations and prices. This Proposal will expire thirty (30) calendar days from the date signed by a **Smart Choice Contractors USA** representative, unless it has been accepted by you before such date. Quoted prices apply only to the specific products and services and quantities stated in this Proposal, and such prices may be adjusted by **Smart Choice Contractors USA** to reflect additional costs and expenses associated with unforeseen circumstances. Unless otherwise specified, all amounts exclude all present and future federal, state, and local excise, sales/use, privilege, personal property, gross receipts, and similar taxes and charges.

4. Warranty. The services and materials provided pursuant to this Proposal are subject to the manufacturer's or labor's warranty, as applicable. A copy of any applicable warranty has been furnished to you and is incorporated by reference. **Smart Choice Contractors USA** covers labor for any construction work performed, for as long as you own your home, or is transferable to the new owner during the valid warranty period. Work performed on multi-family, commercial, or rental properties is covered by a ten (10) year labor warranty. Exclusions include damage incurred by fire, flood, strike, or acts of God. Certain sealants or minor finishing work applied during installation are considered maintenance responsibilities of the homeowner.

5. Customer Responsibility. All materials and equipment remain the property of **Smart Choice Contractors USA** until the total payment agreed upon is completed. The Company is entitled to remove materials or equipment and repair only specific areas affected by work and not the entire property. The Company is not responsible for any loss or damage to property once it has been provided or installed. Any claim must be made through the homeowner's insurance.

6. Payment Terms. Unless otherwise specified, a down payment of fifty percent (50%) of the Final Job Total is required upon acceptance. The remaining balance is due on the day the services are completed. Late payments after thirty (30) days will bear a charge of two percent (2%) per month or the maximum permitted by law. You agree to pay reasonable attorney's fees and costs for enforcement. The Company may require full or partial payment in advance if financial condition

8. Cancellation. Except as otherwise provided, this transaction is non-cancelable, and **Smart Choice Contractors USA** is entitled to collect the full amount if you attempt to cancel. The Company may cancel without liability if you breach the contract or default.

9. Transfer. You may not transfer your duties under this contract to any person without the written consent of **Smart Choice Contractors USA.**

10. Successors. This contract binds your heirs, executors, and administrators.

11. Construction Work Execution. During construction, minor damage to finishes such as trim, drywall, block walls, or paint may occur. **Smart Choice Contractors USA** will repair or replace damaged pieces where possible but is not responsible for matching existing surfaces beyond reasonable efforts.

12. Waste. The Company agrees to remove debris, replaced materials, and waste from your premises. You may elect to keep removed items, but the Company is not responsible for damage or function after removal.

13. Access. You agree to grant **Smart Choice Contractors USA** reasonable access during normal business hours for performing work. You agree to remove any items obstructing work areas. The Company is not responsible for damage to items it moves to perform work.

14. Assignment and Delegation. The Company may assign its rights and delegate obligations without your consent.

15. Governing Law. This Proposal will be governed by and construed according to the laws of the state where **Smart Choice Contractors USA** is located.

16. Validity of Provisions; Severability. If any provision becomes invalid or unenforceable, the remainder continues in full force.

17. Non-Waiver of Rights. No failure or delay by **Smart Choice Contractors USA** to assert any right will be a waiver unless in writing.

18. Arbitration. All disputes will be settled by binding arbitration under the American Arbitration Association. Costs are borne by the non-prevailing party. Arbitration awards may be entered in any court of proper jurisdiction.

19. Entire Agreement; Modification. This Proposal is the complete and exclusive statement of terms. Modifications must be in writing, signed by both parties.

20. Attachments. Any required notices are included in attachments and incorporated by reference. Your initials indicate receipt and approval.

21. Digital Communication and Documentation. The Client agrees that all documents, photos, contracts, plans, and invoices will be stored in the Company's CRM for seven (7) years and accepts electronic access as the official record.

22. Home Depot Materials Refund Policy. Refunds for returned materials will be reimbursed if allowed by the supplier, with proof in the CRM. This policy supports environmental responsibility.

23. Credit Card Fees. All credit card payments incur a 3.32% processing fee. The Client assumes this fee as part of the payment.

does not justify proceeding.

7. **Delays.** Performance dates are estimated only and are not guaranteed. **Smart Choice Contractors USA** will make reasonable efforts to meet performance dates but will not be liable for delays due to permitting, inspections, material availability, labor shortages, acts of God, or other causes beyond its control. The Company is not liable for damages from delayed or premature performance.

8. **Title: Security Interest: Waiver Lien.** Title to materials or equipment remains with **Smart Choice Contractors USA** until full payment is made. To secure performance, the Company retains a security interest in such materials and equipment. Payment in full releases this interest. The Company reserves the right to file a lien if full payment is not received and may withhold project documents until arbitration under Florida law.

24. **Payment Schedule for Large or Permitted Projects.** For projects requiring inspections or permits, payments are: 40% deposit at start, 50% upon completion, 10% after final inspections and closure.

25. **Online Reviews and Arbitration Requirement.** The Client agrees not to post negative reviews on any platform before arbitration or resolution with **Smart Choice Contractors USA**. Posting negative reviews without these steps may result in civil liability.

By signing below, the Client acknowledges having read, understood, and agreed to all terms and conditions outlined in this contract. The Client authorizes **Smart Choice Contractors USA** to act as the contractor and perform the work in compliance with local laws and regulations.

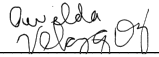


Seating Constructors USA / DBA Smart Choice Contractors USA

General Contractor Clyde Phil Venderhider

Company Signature:

Date: 2025-12-01

Customer Signature: 

Date: 2025-12-01

Printed Name: Awilda Velazquez

Signature

Signer Name: Awilda Velazquez
Signed Date: 2026-03-02 17:40:35
IP Address: 97.97.235.171

